



Notification Waiver Determination

National Dental Care – business assets comprising the Integrated Dental Health clinic, Katoomba, NSW

Acquisition	NDC Australia Pty Limited, a wholly-owned subsidiary of NDC HoldCo Pty Ltd (together with its subsidiaries, National Dental Care) applied for a notification waiver in respect of its proposed acquisition of 100% of the business assets comprising the Integrated Dental Health clinic (IDH) from The Trustee for Lottie Family Trust, as described in the transaction documents provided as part of the application (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	22 September 2026

Parties to the Acquisition	The acquirer, National Dental Care, is a dental services organisation that operates a network of dental clinics that provide a range of general dentistry services. National Dental Care has dental clinics in all Australian states and territories, including New South Wales. National Dental Care is majority owned by funds managed by Crescent Capital Partners, an Australian private equity firm. The target, IDH is a dental clinic located in Katoomba, New South Wales, that provides a range of general dentistry services.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information provided in the application, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition given: - there is no horizontal overlap between National Dental Care and IDH in the supply of general dental services in the local area surrounding the IDH dental clinic - there are alternative suppliers of general dental services in the local area surrounding the IDH dental clinic. In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds being met. Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified.

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	The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's guidance on notification waivers and merger assessment guidelines.
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**Determination made by Commissioner Williams pursuant to a delegation under section 25(1)
of the Act**